

Data Processing Agreement (DPA)

DRAFT template - finalize with counsel. Forms part of the Terms of Service.

This DPA is between **VERTOFI PRIVATE LIMITED** (CIN U62099TS2026PTC211039) ("Processor"/"Vertofi") and the Customer ("Controller") and governs the processing of personal data by Vertofi on the Customer's behalf under the DPDP Act, 2023.

1. Roles

The Customer is the Data Fiduciary/Controller of its data; Vertofi acts as a Data Processor processing personal data only on documented instructions.

2. Subject matter & duration

Processing covers the personal and financial data the Customer submits or connects, for the duration of the subscription plus any legally required retention.

3. Nature & purpose of processing

Hosting, accounting automation, financial-intelligence computation, fraud and security monitoring, and support - solely to provide the service.

4. Categories of data subjects & data

Data subjects: the Customer's personnel, vendors and customers. Data: identity, contact, KYC, financial, transactional and usage data.

5. Processor obligations

Vertofi will: (a) process only on instructions; (b) ensure personnel confidentiality; (c) implement appropriate technical and organisational security measures (Document 06); (d) assist the Controller with data-subject requests and breach notification; (e) not engage sub-processors except as permitted; and (f) delete or return data on termination.

6. Sub-processors

The Customer authorises the sub-processors listed in our register (cloud, communications, OCR, payments, GST/banking integrations). Vertofi remains responsible for sub-processor compliance and will give notice of changes.

7. Security

Encryption in transit and at rest, access controls, tenant isolation, audit logging, and the controls in the Information Security Policy.

8. Personal data breach

Vertofi will notify the Customer without undue delay after becoming aware of a breach affecting the Customer's data and assist with statutory notifications.

9. Data-subject requests

Vertofi will provide reasonable assistance to enable the Controller to respond to access, correction, erasure, and grievance requests.

10. International transfers / localisation

Personal data is hosted in India; any transfer occurs only to permitted jurisdictions with appropriate safeguards.

11. Audits

The Customer may, on reasonable notice and subject to confidentiality, verify Vertofi's compliance through summaries, certifications, or a mutually agreed audit.

12. Return & deletion

On termination, Vertofi will, at the Customer's choice, return or delete personal data, subject to legal retention obligations.

13. Liability

Liability under this DPA is subject to the limitations in the Terms of Service.

Signed for and on behalf of the parties:

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Signed for and on behalf of the parties:

Vertofi

Customer

Name: [Authorised Signatory]

Name: _____

Title: _____

Title: _____

Date: _____

Date: _____

This is a template and does not constitute legal advice.